

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yazmin Sanchez	Team: Team # 8	CCRB Case #: 200200816	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 02/05/2002 1:45 PM	Location of Incident: Amsterdam Ave btw 143rd and 144th Streets	18 Mo. SOL 8/5/2003	Precinct: 30
Date/Time CV Reported Wed, 02/06/2002 3:12 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/06/2002 3:12 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Musso	04046	889120	030 PCT
2. POM Ronald Luparello	27134	916088	030 PCT
3. POM Jason Maggio	10296	906689	030 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Vega	20715	898702	030 PCT
2. POM Ronald Baird	29154	916965	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jason Maggio	Abuse: PO Jason Maggio initiated the stop of § 87(2)(b)	A . Unsubstantiated
B . SGT Michael Musso	Abuse: Sgt. Michael Musso stopped and questioned § 87(2)(b)	B . Exonerated
C . SGT Michael Musso	Abuse: Sgt. Michael Musso frisked and searched § 87(2)(b)	C . Exonerated
D . POM Ronald Luparello	Discourtesy: PO Ronald Luparello spoke rudely to § 87(2)(b)	D . Unsubstantiated

Synopsis

On 2/5/02, Street Narcotics Enforcement Unit officers stopped and searched § 87(2)(b) while he was on his way to lunch near 140th Street and Amsterdam Avenue. From an observation post, PO Maggio radioed to Sgt. Musso, PO Luparello, PO Vega, and PO Baird, who were in a marked van, descriptions of individuals who he observed making exchanges with a drug dealer he was watching. § 87(2)(g)

§ 87(2)(g) PO Maggio's initiating the stop § 87(2)(g)

§ 87(2)(g) the allegation was unsubstantiated.

§ 87(2)(g)

§ 87(2)(g) That PO Luparello made a discourteous remark towards § 87(2)(b) that may have been calling him "a fucking punk" was unsubstantiated. § 87(2)(g)

Summary of Complaint

On 2/12/02, § 87(2)(b) provided a statement to the CCRB (enc. 7). § 87(2)(b) is black, dark-complexioned, § 87(2)(b)

§ 87(2)(b). § 87(2)(b) stated that on 2/5/02, he left the North Atlantic Center building of the campus located on 137th street and Amsterdam Avenue to get lunch. He went to an ATM at a bodega on Amsterdam Avenue between 140th and 141st streets. He did not purchase anything, did not speak to anyone, and does not know anyone associated with the store. He left the bodega and walked north along Amsterdam Avenue. He was walking, jogging, and running for no other reason than he was feeling good about his day. § 87(2)(b) was wearing a gray and green hat, a black waist-length jacket, dark blue baggy jeans, and his gray and silver sneakers.

As § 87(2)(b) neared the corner of 144th Street on Amsterdam Avenue, he saw a marked police van drive up beside him on his left and park. § 87(2)(b) looked over at the van and noticed that the four officers who were exiting the van were looking at him. He stopped and faced them because it looked like they wanted to talk to him. The officers asked § 87(2)(b) if he had bought drugs (Allegations A and B – stop and question). § 87(2)(b) who has never bought drugs in his life, asked the officers what they were talking about.

An officer that § 87(2)(b) described as being 6'0", in his late 30's, with black hair, weighing 175-190 pounds, subsequently identified as PO Luparello, did most of the talking and was the most verbally aggressive officer. He told § 87(2)(b) that they saw him buy drugs from a dealer down the street and asked § 87(2)(b) if he was accusing the officers of lying. § 87(2)(b) told the officers that he had no idea what they were talking about.

An officer in his mid 40's, about 5'6, with brown, receding hair, weighing about 150 pounds, and with badge number 4045, who was subsequently identified as Sgt. Musso, frisked and searched § 87(2)(b) against the wall of a building next to them. Other officers may have participated in the search, but Sgt. Musso was the main officer conducting it (Allegation C – frisk and search). Sgt. Musso patted § 87(2)(b)'s waist, thighs, and chest and searched all of his pockets. Sgt. Musso ran the side of his hand in between § 87(2)(b)'s buttocks on the outside of § 87(2)(b)'s pants. He unbuckled § 87(2)(b)'s belt, unzipped his jeans and stuck his right hand inside § 87(2)(b)'s pants but on top of the long johns § 87(2)(b) was wearing. Sgt. Musso felt the area around § 87(2)(b)'s groin. § 87(2)(b) embarrassed, started to cry. There was a lot of traffic and people outside, but no one that § 87(2)(b) knew.

An officer that § 87(2)(b) described as the oldest-looking officer, who was in his late 40's-early 50's, had salt and pepper hair, was about 5'7" and weighed about 170 pounds, subsequently identified as PO Vega, asked § 87(2)(b) for his identification. § 87(2)(b) gave the officer his non-driver's license and college ID. PO Vega wrote down information from these. The youngest officer who § 87(2)(b) described as about 30, 5'8", and weighing about 140 pounds had very little interaction with § 87(2)(b). This officer was subsequently identified as PO Baird.

The officers found no drugs on § 87(2)(b). PO Luparello told § 87(2)(b) that if he was lying, the officers would go to the school and embarrass him. PO Luparello called him something like a "fucking punk;" he told § 87(2)(b) to turn walk away and not come back (Allegation D). § 87(2)(b) did as he was told. § 87(2)(b) went to his school, realized that the officers did not give him back his school ID and he got a temporary ID. He went home, called State Assemblyman, § 87(2)(b) office, and was provided the CCRB telephone number.

§ 87(2)(b) stated that from the time he left the § 87(2)(b) to the time the officers stopped him, he was alone; he did not stop to talk to anyone and no one bumped into him. He said that he does not know anyone who sells drugs in the area and he does not sell drugs.

On 3/27/02, § 87(2)(b) viewed three photo arrays, which were assembled based on the two badge numbers that § 87(2)(b) provided, which were similar to the badge numbers of Sgt. Musso and PO Luparello of the 30th precinct – the precinct of occurrence (see enc. 8). § 87(2)(b) selected PO Luparello from an array indicating he was the officer who "confronted me the most," and was "the most verbal." PO Luparello asked § 87(2)(b) "Did you buy this from such and such a person? Tell me who the person is." § 87(2)(b) also recognized Sgt. Musso as the officer who took information from him. § 87(2)(b) believed this was the officer who he referred to as badge number "4-0-something." The last array that § 87(2)(b) viewed did not contain a photo of a subject officer and he recognized no one.

Results of Investigation

Officer statements

Sgt. Michael Musso

Sgt. Musso is a male white, § 87(2)(b). On 2/5/02, he worked as the Street Narcotics Enforcement Unit supervisor. Sgt. Musso, who provided a CCRB statement on 4/22/02, worked with PO Luparello, PO Vega, and PO Baird in a marked NYPD van (enc. 10). Sgt. Musso was in the front passenger seat. According to Sgt. Musso, there is an ongoing narcotics investigation in the area of 140th Street and Amsterdam Avenue. Sgt. Musso has been a part of many of these operations in the area and in the 30th precinct as a whole. There was an observation post at 140th Street and Amsterdam Avenue. Sgt. Musso and the other officers were about four blocks away from the post and were parked somewhere around 142nd or 143rd Street, so as not to be seen.

According to Sgt. Musso, PO Maggio, from the observation post, observed a person whose description § 87(2)(b) matched giving money to one of the "regular" drug dealers in the area and receiving what appeared to be drugs. This exchange took place outside, not in a building. Sgt. Musso received a radio transmission describing the buyer of drugs and indicating that he was heading northbound on Amsterdam Avenue. Sgt. Musso did not remember the description that the observation post officer gave, but § 87(2)(b) matched the description. Sgt. Musso was parked far enough away not to have seen the alleged exchange between § 87(2)(b) and the known drug dealer. Sgt. Musso did not have first hand knowledge that § 87(2)(b) had interacted with a "known drug dealer" because only the officers at the observation post know that information. (The drug dealer was not arrested on 2/5/02.)

When shown a photograph of § 87(2)(b) Sgt. Musso recognized him as the person he stopped on 2/5/02. From a couple of blocks away, Sgt. Musso first saw § 87(2)(b) at 141st Street. § 87(2)(b) seemed to walk with another male that Sgt. Musso did not recognize and who went his

own way at 141st Street and headed east. Sgt. Musso did not know for how long § 87(2)(b) walked with the other male, and he stated, “I just saw them coming down and split up. Where they hanging out together? I don’t know.” Sgt. Musso did not see an exchange between § 87(2)(b) and the other person. Sgt. Musso thought he remembered the observation post officers indicate that the other male with an unknown description accompanied § 87(2)(b) while § 87(2)(b) bought the drugs.

Sgt. Musso did not remember if § 87(2)(b) showed signs of being aware of the officers’ presence before they stopped him and he did not see him drop anything prior to being stopped at 143rd Street. Sgt. Musso and PO Luparello immediately started to search § 87(2)(b) who was nervous and scared. Sgt. Musso checked between § 87(2)(b)’s buttocks on the outside of his clothing. Sgt. Musso did not remember unbuckling § 87(2)(b)’s pants or unzipping his pants. He said that he would not enter someone’s pants unless he had gloves on and was conducting a search at the precinct. Sgt. Musso did not remember if any other officers entered § 87(2)(b)’s pants. About his understanding stops and frisks, Sgt. Musso said that when he, the SNEU sergeant, believes that someone has made a drug transaction and thus has drugs on him he can direct officers to search for a person for drugs.

The officers found no drugs on § 87(2)(b)’s person or on the ground. Sgt. Musso said he assumed that § 87(2)(b) passed the drugs to the other male. Sgt. Musso did not remember if PO Luparello called § 87(2)(b) a “punk” or cursed at him. Sgt. Musso did not know which officer took § 87(2)(b)’s ID, but when the officers realized that they had it while they were in the van, they drove to § 87(2)(b) and PO Luparello gave the ID to a security guard. The SNEU team on 2/5/02 arrested no one.

PO Jason Maggio

PO Maggio provided a CCRB statement on 5/7/02 (enc. 16). He stated that he worked with PO Wilder Sanchez at the observation post supervised by Sgt. Musso. PO Maggio and PO Sanchez were in a higher floor of a 4 to 5-story building. They were in plainclothes and were part of a SNEU operation led by Sgt. Musso. They looked out of the window most likely using binoculars and had a view of more than one street. PO Maggio and PO Sanchez had department radios and used these to transmit to Sgt. Musso descriptions of anyone he observed dealing with narcotics.

PO Maggio had no related memo book entries (see enc. 15) and had no recollection of § 87(2)(b) even after viewing photographs of § 87(2)(b) and the UF250 filled out by PO Vega about § 87(2)(b)’s stop and frisk, which was predicated on PO Maggio’s observation. PO Maggio said he was not watching a particular known drug dealer on 2/5/02, though he has arrested drug dealers in the area who repeatedly sell in the area. PO Maggio said “there had to have been” someone selling drugs in front of the location or he would not have given the radio transmission that led to § 87(2)(b)’s stop. PO Maggio did not remember if there had been numerous drug exchanges on 2/5/02.

PO Maggio said the arrest team likely talked to him about § 87(2)(b)’s stop, telling him something like “he was negative results” since § 87(2)(b) was not arrested, but he did not remember a specific conversation.

PO Ronald Luparello

PO Luparello, who provided a CCRB statement on 4/8/02 said he is not a regular member of the SNEU unit and had no memo book entries about the incident (see enc. 11 & 12). He did, however, have a fly sheet which reads “§ 87(2)(b) ID returned.” PO Luparello explained during his interview that this information is the name of the security guard at § 87(2)(b) to whom the officers gave § 87(2)(b)’s ID when they realized they still had it.

PO Luparello is white, § 87(2)(b), has black hair, brown eyes § 87(2)(b). § 87(2)(g) PO Luparello did not see § 87(2)(b) with another male and knew about no radio transmission indicating that § 87(2)(b) was with another male. PO Luparello recalled the transmission from

the observation post, which was a description of a person who bought drugs. § 87(2)(b) fit description of the person. Though he could not confirm what the complainant was wearing, PO Luparello was able to positively identify and recognize the complainant from photographs of the complainant.

Before the officers stopped him, § 87(2)(b) turned and looked back over his left shoulder at the officers in the van. PO Luparello made eye contact with the complainant. The officers in the van followed § 87(2)(b) for a few blocks, remaining about four car lengths behind him. PO Luparello and the other two or three officers in the van followed from a few blocks away, so as to not tip off the drug dealer of the police presence. PO Luparello did not lose sight of the complainant, but was not able to see everything he was doing as there were temporary obstructions of view (double parked cars, car windows, etc). Upon stopping § 87(2)(b) PO Luparello believes he introduced himself and explained the reason for the stop. § 87(2)(b) seemed shocked and surprised, “playing innocent as if he knew he were caught.” § 87(2)(b) said that he did not do anything, did not buy drugs, and was “just on his way to lunch.” PO Luparello denied using discourteous language with the complainant. PO Luparello and the other officers then searched the complainant for drugs because he believed he had probable cause of drug possession based on the earlier communication from the observation post.

PO Luparello asserted that he would never unzip anyone’s pants or reach into a person’s pants to search for contraband, and did not do so on this occasion. PO Luparello stated that such a search would never occur unless it involved only the waistband of underwear, as drugs are sometimes kept there to be close to the body and thus unseen. PO Luparello backtracked down the block to see whether the complainant had gotten rid of any drugs when he spotted the police van. Nothing was found on the complainant or on the sidewalk. An officer used § 87(2)(b)’s ID to write up a UF 250, but PO Luparello did not fill out the form.

§ 87(2)(b) was told that he could leave; he did not ask for his college ID back. The officers left in the van and then PO Luparello saw the college ID on the van floor. The officers drove to § 87(2)(b) and gave the ID to a campus security officer § 87(2)(b) who informed PO Luparello that he would see to it that the ID be taken care of.

PO Joseph Vega

PO Vega provided a CCRB statement on 5/28/02 (enc. 14). PO Vega is § 87(2)(b), has black hair, brown eyes, § 87(2)(b). On 2/5/02, PO Vega was dressed in uniform and was out on his first assignment with Sgt. Musso and the observation post officers. PO Vega’s memo book (enc. 13) indicated that on 2/5/02 at 2:05 PM, Sgt. Musso and PO Luparello stopped a black male about 5’8” 130 pounds who was wearing a green hat, black jacket, blue jeans. This male, he wrote, “fit the description of the transmission that we received by the observation officers at narcotics location; exchange made by person.” According to the memo book, at 2:15 PM, the officers were back on patrol; § 87(2)(b) was warned and admonished; and a UF 250 was prepared. PO Vega said he filled out the information in his memo book and in the UF 250 he filled out right after § 87(2)(b) was stopped.

PO Vega corroborated PO Luparello’s statement. PO Vega heard the transmission and remembered that said § 87(2)(b) made an exchange with a “known drug dealer.” PO Vega clarified that PO Dimaggio did not use the words “known drug dealer” and did not mention a drug dealer’s name; at the start of the transmissions, PO Dimaggio informed the officers with, “We know who’s out there selling.” PO Vega did not know which drug dealer it was that was being referred to. PO Vega thought the sergeant would know because PO Dimaggio said about the seller, “It’s the same guy from last time.” According to PO Vega, § 87(2)(b) “absolutely” fit the description provided by the observation post officer to whom he referred as PO Dimaggio (though the officer’s name is PO Maggio). PO Vega looked at the photographs of § 87(2)(b) in the case file and confirmed that the person was § 87(2)(b) and confirmed that he was wearing the same or similar attire on 2/5/02.

Like PO Luparello, PO Vega did not see § 87(2)(b) with any other people. Sgt. Musso and PO Luparello searched § 87(2)(b) while they explained to him why he was being searched. PO Vega said and did nothing towards § 87(2)(b). He just stood by the sergeant and PO Luparello. PO Vega said that Sgt. Musso and PO Luparello went into § 87(2)(b)'s pockets and "thoroughly went through § 87(2)(b)'s clothing" but no strip search was conducted. PO Vega was sure no officer unzipped § 87(2)(b)'s pants, unbuckled his belt, or asked § 87(2)(b) to do so. Sgt. Musso shook § 87(2)(b)'s pants, holding the waist of the pants, to see if anything would fall down. PO Vega did not remember what PO Luparello said to § 87(2)(b) at the scene, but he recalled them talking to each other. § 87(2)(b)'s demeanor was "scared, sweating a little bit and he was shaky." Sgt. Musso ordered PO Vega to write a UF250 about § 87(2)(b)'s stop. PO Luparello asked § 87(2)(b) for his ID and after he filled out the UF 250, PO Vega gave the ID to PO Luparello to return to § 87(2)(b). § 87(2)(b) started to walk away "in a rush" and the officers left the scene. About five minutes later, PO Luparello said that he still had § 87(2)(b)'s ID. PO Vega, who was driving the vehicle, drove back to the school (§ 87(2)(b)) and gave the ID to the school security officers at the gate. The security officer told the officers that he would turn in the ID and "see to it" that § 87(2)(b) got it back. PO Vega said the arrest team received "a good five" transmissions of descriptions provided by the observation post on 2/5/02.

§ 87(2)(g)

Police documents

§ 87(2)(b)'s name appears on the Stop and Frisk Log of the 30th precinct (enc. 18). The Stop and Frisk Report (UF250), filled out by PO Vega, indicates that during a SNEU operation, PO Maggio observed § 87(2)(b) at a narcotics location making an exchange with United States Currency (see enc. 17). The report indicates that a pat/frisk was conducted and § 87(2)(b)'s clothes were searched. A request for Communications records found no communications at the incident location on the corresponding date and time (see enc.19 and 23).

Criminal conviction history

§ 87(2)(b) has no criminal conviction history (see enc. 21).

Officer substantiation history

Sgt. Musso had two complaint substantiated against him; a year 2000 case for which allegations of discourtesy and threat of arrest were substantiated and a 1998 case for which two allegations of abuse-other were substantiated (see enc. 4). Charges were recommended in both cases. For case number 9804043, Sgt. Musso negotiated with the department and pled to a push; he received a loss of ten vacation days. For case number 200006333, Sgt. Musso's discipline was instructions for the threat of arrest. PO Luparello and PO Maggio have no substantiated cases (see enc. 5 & 3).

Conclusions and Recommendations

§ 87(2)(g)

§ 87(2)(b) No contraband was removed from § 87(2)(b). There is no question, though, that the officers received a transmission that he bought drugs or that someone who looked very much like him did. § 87(2)(g)

§ 87(2)(b) admitted to seeing the officers before they stopped the van next to him. He explained that he had been jogging and walking to lunch because he was in a good mood, § 87(2)(g)

§ 87(2)(g) The officers saw § 87(2)(b) look at them and found his nervous behavior indicative of his having done something wrong. The officers stopped and questioned him thoroughly and the officers, mainly Sgt. Musso, frisked and searched § 87(2)(b) § 87(2)(g) § 87(2)(b) states that an officer unbuckled his pants and stuck his hand down his pants, § 87(2)(g)

§ 87(2)(g) the officers filled out a UF 250 and having not found evidence of narcotics, allowed § 87(2)(b) to leave. § 87(2)(b) alleges that PO Luparello was discourteous towards him but did not know exactly what the officer said to him that was discourteous. He thought the officer might have called him a “fucking punk” but during his photo array session did not state that the officer said this specific remark to him. PO Luparello denied it happened and the other officers did not remember PO Luparello saying anything discourteous towards § 87(2)(b)

Allegation A: PO Joseph Maggio initiated the stop of § 87(2)(b)

§ 87(2)(g) § 87(2)(b) states that he was alone the entire time and talked to no one on his way to lunch. He states that he did not buy or sell drugs to anyone and has never done so. Yet, PO Maggio transmitted information to the field team that a black male about 5’8” 130 pounds who was wearing a green hat, black jacket, and blue jeans had made an exchange with a drug dealer. § 87(2)(g)

Allegation A is therefore recommended to be closed as unsubstantiated.

Allegation B: Sgt. Musso stopped and questioned § 87(2)(b)

§ 87(2)(g) Sgt. Musso thought that a person whom the other officers did not see accompanied § 87(2)(b) for a short time. PO Maggio was unable to recall what he saw on the date of the incident or what transmission he put over the radio, § 87(2)(g)

According to the officers, the transmission indicated that someone whose description § 87(2)(b) exactly fit had made an exchange with a known drug dealer. Even though PO Maggio did not know if the drug dealer was “known” to the officers, he and PO Sanchez were watching a dealer sell drugs. Also, PO Vega recalled that PO Maggio and PO Sanchez transmitted

information about several drug sales during the operation and that PO Maggio indicated the seller was “the same guy from last time.”

Sgt. Musso authorized the stop of § 87(2)(b) because he believed that PO Maggio’s description gave him the probable cause to do so. Kamin’s *New York Search and Seizure* indicates that as per Criminal Procedure Law, a police officer can stop and arrest a person believed to have committed a crime either in the officer’s presence or in the presence of another officer (see enc. 1b). Kamin’s *Search and Seizure* quotes *People v. Carrasquillo* in indicating that for probable cause, “it must appear to be more probable than not that a crime has taken place and that the one arrested is its perpetrator.” Officers can make arrests, and hence stops if they receive information via radio, for example, that a specific person committed a specific crime; this is sometimes referred to as the “fellow officer” rule (see enc. 1a). Furthermore, the nature of SNEU operations is that officers must depend on the observations of other officers in order to stop, search and arrest individuals.

§ 87(2)(g)

PG Procedure 208-01, the Law of Arrest, indicates that an officer may arrest, and hence must first stop a person that an officer has reasonable cause to believe committed a crime (enc. 2). § 87(2)(g)

Allegation B should therefore be exonerated.

Allegation C: Sgt. Musso frisked and searched § 87(2)(b)

§ 87(2)(g)

Allegation C is therefore recommended to be exonerated.

Allegation D: PO Luparello spoke rudely towards § 87(2)(b)

§ 87(2)(b) alleged that PO Luparello called him something like a “fucking punk” but he was not sure of this. § 87(2)(b) admittedly felt that PO Luparello was aggressive because the officer was the primary interrogator, hence, he intimidated § 87(2)(b). None of the officers interviewed heard PO Luparello say anything discourteous towards § 87(2)(b) § 87(2)(g)

OATH has repeatedly held, for example, that officers can curse at civilians during an effort to gain the civilian’s compliance with a lawful order. § 87(2)(g)

the allegation is recommended to be closed as unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: